

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                 |                                    |                                                       |                                    |                                 |
|--------------------------------------------------|---------------------------------------------------------------------------------|------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Diana Arreaga                   | Team:<br>Squad #02                                                              | CCRB Case #:<br>201507867          | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                 |                                    | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 09/13/2015 8:50 AM   | Location of Incident:<br>East 124th Street between 2nd Avenue<br>and 3rd Avenue | 18 Mo. SOL<br>3/13/2017            | Precinct:<br>25                                       |                                    |                                 |
| Date/Time CV Reported<br>Thu, 09/17/2015 8:59 AM | CV Reported At:<br>CCRB                                                         | How CV Reported:<br>Phone          | Date/Time Received at CCRB<br>Thu, 09/17/2015 8:59 AM |                                    |                                 |
| <b>Complainant/Victim</b>                        | <b>Type</b>                                                                     | <b>Home Address</b>                |                                                       |                                    |                                 |
|                                                  |                                                                                 |                                    |                                                       |                                    |                                 |
| <b>Subject Officer(s)</b>                        | <b>Shield</b>                                                                   | <b>TaxID</b>                       | <b>Command</b>                                        |                                    |                                 |
| 1. POF Jackeline Gonzalez                        | 08585                                                                           | 950518                             | PSA 5                                                 |                                    |                                 |
| <b>Witness Officer(s)</b>                        | <b>Shield No</b>                                                                | <b>Tax No</b>                      | <b>Cmd Name</b>                                       |                                    |                                 |
| 1. POM Lauren Baladan                            | 24585                                                                           | 952440                             | PSA 5                                                 |                                    |                                 |
| <b>Officer(s)</b>                                | <b>Allegation</b>                                                               | <b>Investigator Recommendation</b> |                                                       |                                    |                                 |
| A . POF Jackeline Gonzalez                       | Abuse: PO Jackeline Gonzalez threatened to issue a summons to § 87(2)(b)        | A . Unsubstantiated                |                                                       |                                    |                                 |

### **Case Summary**

On September 13, 2015, at approximately 5 to 10 minutes before 8:50 a.m., PO Jackeline Gonzalez approached the vehicle in which § 87(2)(b) was an occupant and informed her that she was not allowed to angle park her vehicle in the designated area reserved for marked RMPs located directly across the street from PSA5's parking lot on 124<sup>th</sup> Street between 2<sup>nd</sup> and 3<sup>rd</sup> Avenues in Manhattan. During their interaction, PO Gonzalez indicated that she was going to write a summons to § 87(2)(b) (**Allegation A**).

### **Video Footage**

- § 87(2)(b) filmed the conversation that took place between § 87(2)(b) and PO Gonzalez after the incident occurred, however, § 87(2)(b) did not wish to provide the footage as part of the investigation.

### **Mediation, Civil and Criminal Histories**

- § 87(2)(b) accepted Mediation on September 17, 2015. After being contacted by the Mediation Unit, § 87(2)(b) decided to opt out of mediation for a full investigation on October 19, 2015. The case was returned to the Investigation Unit on October 20, 2015.
- As of November 17, 2015, § 87(2)(b) has not filed a notice of claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has no prior CCRB complaints (Board Review 02).
- PO Gonzalez has been a member of the NYPD for four years and has one current open CCRB complaint case #201507717 against her involving one allegation (see officer history).

### **Potential Issues**

- § 87(2)(b) did not wish to provide the CCRB with the video footage she recorded on her phone camera regarding a conversation she had with PO Gonzalez after the incident occurred since she was unsure if she would file a lawsuit regarding the incident. § 87(2)(b) stated that she recorded PO Gonzalez's name and shield during this conversation.

### **Findings and Recommendations**

#### **Allegations not pleaded**

- **Abuse:** In her phone statement § 87(2)(b) alleged that PO Gonzalez did not provide her name and shield, however, during her CCRB sworn statement she did not make this allegation. § 87(2)(b) stated that she obtained this information and recorded both PO Gonzalez's name and shield on her phone camera. § 87(2)(g)

**Allegation A –Abuse of Authority: PO Jackeline Gonzalez threatened to issue a summons to**

§ 87(2)(b)

§ 87(2)(b) stated that as she attempted to angle park her vehicle across the street from PSA5's parking lot located on 124<sup>th</sup> Street, PO Gonzalez approached her vehicle and informed her that she was not allowed to park in the designated area since it was strictly reserved for police vehicles only. § 87(2)(b) pointed towards a parking sign that was about 15 feet away from where she had parked her vehicle and explained to PO Gonzalez that she was prohibited from parking in the area Monday – Friday, 7:00 a.m. – 7:00 p.m., however, the date of the incident was Sunday and, therefore, she was not violating any parking rules. PO Gonzalez allegedly took out her summons book and began to motion to write § 87(2)(b) a summons. § 87(2)(b) asked if PO Gonzalez was going to write a summons and PO Gonzalez responded "yes." § 87(2)(b) moved her vehicle and told PO Gonzalez that she would return to speak to her about the incident and her threat to issue her a summons.

PO Gonzalez stated that prior to the start of her tour as Stationhouse Security she saw a notice posted all around the interior of the stationhouse, including the locker rooms, which had a section highlighted that read "DO NOT PARK HERE" and a handwritten note on the bottom of the sheet that read "DO NOT PARK YOUR CAR ON 124 ST. BY DREAM ST. PARK. THOSE SPOTS ARE FOR MARKED RMPs. Failure to comply may be met with disciplinary action!" (Board Review (03)). PO Gonzalez was instructed by the previous night tour security PO Jasvir Singh to follow the notice and prohibit anyone from parking in the designated zone strictly reserved for RMPs. When PO Gonzalez observed § 87(2)(b) attempting to park in the designated zone she approached § 87(2)(b) and informed her that she was not allowed to park her vehicle in the specific zone since it was reserved for RMPs. PO Gonzalez did not recall telling § 87(2)(b) that she would issue her a summons and did not recall motioning to write a summons. § 87(2)(b) complied and moved her vehicle. PO Gonzalez stated that if she would have had to issue a summons to § 87(2)(b) for angle parking in the specific area she would have had to look up the parking violation. PO Gonzalez spoke with her supervisor Lt. Elissa Carlies afterwards who informed her not to enforce the "no parking in the specific area reserved for marked RMPs" rule until she looked into the notice.

Patrol Guide Procedure 209-01 states that a uniformed member of the service is authorized to issue a summons /notice of violation instead of arresting the violator, when the violator is 16 years old or more for any misdemeanor or violation listed in the Vehicle and Traffic Law (Board Review 04).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that allegation A be closed as **unsubstantiated**.

Squad: 2

|               |           |       |       |
|---------------|-----------|-------|-------|
| Investigator: | _____     | _____ | _____ |
|               | Signature | Print | Date  |

|             |                 |       |       |
|-------------|-----------------|-------|-------|
| Pod Leader: | _____           | _____ | _____ |
|             | Title/Signature | Print | Date  |

|           |                 |       |       |
|-----------|-----------------|-------|-------|
| Attorney: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |